

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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**RAMONA DURAN SOTO, ELAINY ORTIZ SOTO, and
ELINE ORTIZ SOTO,**

Plaintiffs,

-against-

**THE CITY OF NEW YORK, NYPD officer MARIO GUERRO
(Badge No. 6810) and, Defendant NYPD Officers JOHN and
JANE DOE Nos. 1 -10.**

Defendants.

Index No.:

SUMMONS

Basis of Venue:
Location Of Incident

Plaintiff Designates Kings
County as Place of Trial

-----X
TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 22, 2024

By: David R. Kline, Jr.
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
E: David@DRKlineLaw.com

Attorneys for Plaintiffs

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY 10007.

NYPD Officer MARIO GUERRO, Badge No. 6810, 63rd NYPD Precinct, 1844 Brooklyn Ave, Brooklyn, NY 11210.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X

**RAMONA DURAN SOTO, ELAINY ORTIZ SOTO, and
ELINE ORTIZ SOTO,***Plaintiffs,***-against-****THE CITY OF NEW YORK, NYPD officer MARIO GUERRO
(Badge No. 6810), and Defendant NYPD Officers JOHN and
JANE DOE Nos. 1 -10.***Defendants.*

-----X

TO THE SUPREME COURT OF THE STATE OF NEW YORK:

Plaintiffs RAMONA DURAN SOTO, ELAINY ORTIZ SOTO, and ELINE ORTIZ SOTO, through his attorneys, DRK Law, LLC, respectfully, upon information and belief, allege the following for this Verified Complaint:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover monetary damages (special, compensatory, and punitive) arising out of defendants' violation of plaintiffs' rights as secured by the Constitution of the United State of America, 42 U.S.C. § 1983, the laws of the State and City of New York, and the common law.

THE PARTIES

2. Plaintiff **RAMONSA DURAN SOTO** was at all times relevant herein a resident of the State of New York.

Index No.:**VERIFIED COMPLAINT**

Basis of Venue:
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3. Plaintiff **ELAINY ORTIZ SOTO** was at all times relevant herein a resident of the State of New York.

4. Plaintiff **ELINE ORTIZ SOTO** was at all times relevant herein a resident of the State of New York.

5. Defendant **THE CITY OF NEW YORK** (“City” or “the City” or “Defendant City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of New York State law, acting under the direction and supervision of the aforementioned municipal corporation, **THE CITY OF NEW YORK**.

7. Defendant **NYPD Officer MARIO GUERRO, Badge No. 6810**, was, at all times relevant to this Complaint, a police officer employed by the **CITY**. At all times relevant herein, defendant **NYPD Officer MARIO GUERRO**, was assigned to work at the NYPD 63rd Precinct. In this role, defendant **NYPD Officer MARIO GUERRO** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

8. Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10**, were, at all times relevant to this Complaint, police officers employed by the **CITY**. In this role, Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10** were duly appointed and acting as officers, servants, employees, and/or agents of the City of New York. At all relevant times, they were acting in the scope of their employment and under color of state law.

JURISDICTION AND VENUE

9. This action is brought pursuant to the laws of the City and State of New York, 42 U.S.C. Act of 1871 § § 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, *inter alia*.

10. Venue is proper in this county as the transactions and occurrences took place in Kings County, City and State of New York.

PROCEDURAL REUIREMENTS

11. All Plaintiffs have fulfilled all procedural requirements for filing suit, including complying with GML § 50-e.

12. All Plaintiffs served a timely Notices of Claim on defendant **CITY** via the New York City, Office of the Comptroller's "eClaim system."

13. Plaintiffs **RAMONDA DURAN SOTO** and **ELAINY ORTIZ SOTO** sat for hearings pursuant to GML § 50-h. The Defendant **CITY** refused to conduct a hearing for Plaintiff **ELAIN ORTIZ SOTO**.

14. More than thirty (30) days have elapsed since the filing of the Notices of Claim in this case.

15. As of the date of this Verified Complaint, defendant **CITY** has neglected and/or refused to adjust and/or pay the Plaintiffs' claim.

16. This action was commenced within statutes of limitation prescribed by law.

JURY DEMAND

17. Plaintiff demands a trial by jury on each and every cause of action.

STATEMENT OF FACTS

18. On August 25, 2023, at approximately 5:20 p.m., at the intersection of Avenue M and Ralph Avenue, County of Kings, State of New York, **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10**, *inter alia*, falsely arrested and detained **Plaintiffs RAMONA DURAN SOTO, ELAINY ORTIZ SOTO, and ELINE ORTIZ SOTO**.

19. **Plaintiff RAMONA DURAN SOTO** was driving in her lawfully registered and insured vehicle with her two daughters, **Plaintiffs ELAINY ORTIZ SOTO and ELINE ORTIZ SOTO**, when **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1**, activated the emergency lights on their NYPD vehicle and pulled plaintiffs over to the side of the road.

20. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer John Doe No. 1** approached **Plaintiff RAMONA DURAN SOTO** and demanded to see her license; a command with which she immediately complied. After providing her license to the defendant NYPD officers, **Plaintiff RAMONA DURAN SOTO** asked the officers whether they spoke Spanish. Both officers confirmed that they did but refused to speak with her in that language and/or that they could get a translator.

21. Shortly thereafter, **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** went back to their patrol car.

22. After a few minutes **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** returned to **Plaintiff RAMONA DURAN SOTO** and told her in English that her driver's license was suspended, which **Plaintiffs ELAINY ORTIZ SOTO and ELINE ORTIZ SOTO** translated for her. **Plaintiff RAMONA**

DURAN SOTO was shocked and confused as to why the defendant NYPD officers believed her license was suspended and again asked them to speak to her in Spanish so that she could fully understand them and ask questions. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** again refused to speak to her in Spanish or get a translator.

23. When **Plaintiff RAMONA DURAN SOTO** asked **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** one last time to speak to her in Spanish, the officers flew into a rage.

24. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** grabbed **Plaintiff RAMONA DURAN SOTO** by her arms and began to wrench her out of the vehicle.

25. After **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** forcibly pulled **Plaintiff RAMONA DURAN SOTO** from the car, the defendant NYPD officers slammed her onto the hard concrete ground.

26. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** then applied downward pressure onto **Plaintiff RAMONA DURAN SOTO's** body thereby pressing her into the hard ground.

27. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** also kicked **Plaintiff RAMONA DURAN SOTO** while she was on the ground.

28. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** forced **Plaintiff RAMONA DURAN SOTO's** arms behind her

back, pinned her wrists together, and cuffed her wrists together with metal handcuffs. They then put her in the back of their NYPD vehicle.

29. All of the foregoing happened in full view of **Plaintiffs ELAINY ORTIZ SOTO and ELINE ORTIZ SOTO**.

30. **Plaintiffs ELAINY ORTIZ SOTO and ELINE ORTIZ SOTO** were forced to watch their mother's false arrest and beating by the defendant NYPD officers, causing them, *inter alia*, severe panic, alarm, fright, shock, and anxiety.

31. Additionally, **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10** illegally detained **Plaintiffs ELAINY ORTIZ SOTO and ELINE ORTIZ SOTO** for approximately two hours after they had taken **Plaintiff RAMONA DURAN SOTO** away from the scene.

32. After **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officer JOHN DOE No. 1** falsely arrested and assaulted **Plaintiff RAMONA DURAN SOTO**, they brought her in custody to the 63rd NYPD Precinct ("the Precinct."

33. At the precinct, **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10** fingerprinted, photographed, and searched **Plaintiff RAMONA DURAN SOTO**.

34. **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10** then put **Plaintiff RAMONA DURAN SOTO** into an unsanitary holding cell where they held her for several hours before finally transporting her to Kings County Central Booking.

35. While **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10** had **Plaintiff RAMONA DURAN SOTO**

in their custody at the precinct, they knowingly, intentionally, and maliciously transmitted false and/or knowingly incomplete and/or knowingly incorrect information to the Kings County District Attorney's Office wherein they alleged that **Plaintiff RAMONA DURAN SOTO** had committed numerous crimes.

36. At Central Booking, **Plaintiff RAMONA DURAN SOTO** was placed into another dank, unsanitary holding cell to await arraignment.

37. On August 26, 2023, after approximately 24 hours in custody, **Plaintiff RAMONA DURAN SOTO** was taken before a judge and formally charged with the following crimes and violations: Resisting Arrest (NY PL § 205.30); Attempted Assault In the Third Degree (NY PL § 110/120.00) (two counts); Aggravated Unlicensed Operation of a Motor Vehicle (NY VTL § 511); Harassment In the Second Degree (NY PL § 240.26) (two counts); and Driving Without a License (NY VTL § 509).

38. **Plaintiff RAMONA DURAN SOTO** entered a plea of not guilty to all the charges and was released by the Court on her own recognizance.

39. On August 27, 2023, **Plaintiff RAMONA DURAN SOTO** went to the Mount Sinai Hospital Emergency Department for treatment. At the ER **Plaintiff RAMONA DURAN SOTO** received treatment for injuries sustained from the defendant NYPD officers. While **Plaintiff RAMONA DURAN SOTO** was fortunate that she did not suffer any fractures or other more serious injuries, she was covered in painful lacerations and bruises.

40. Several months after her arrest, on February 9, 2024, all the erroneous felony charges brought against **Plaintiff RAMONA DURAN SOTO** were dismissed and sealed.

41. On March 1, 2024, the remainder of the false charges against **Plaintiff RAMONA DURAN SOTO** were also dismissed and sealed.

42. During the pendency of her criminal case, **Plaintiff RAMONA DURAN SOTO** had to appear to court multiple times in person.

43. At no point relevant herein did plaintiffs violate any laws or provide any lawful basis for their detention.

44. At no point relevant herein did plaintiffs resist arrest and/or assault anyone.

45. At no point relevant herein did plaintiffs consent to their detention, confinement, or arrest.

46. At no point relevant herein did defendant NYPD officers have the probable cause necessary to arrest and/or detain plaintiffs.

47. At no point relevant herein did defendant NYPD officers have a valid judicial warrant to arrest plaintiffs.

48. At no point relevant herein did defendant NYPD officers have the legal justification to assault and batter **Plaintiff RAMONA DURAN SOTO**.

STATE LAW CLAIMS

CAUSE OF ACTION ONE

Violations of New York State Constitution **(By All Plaintiffs Against All NYPD Defendants)**

49. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs as if set forth herein.

50. The defendant NYPD officers were acting in their official capacities as NYPD officers employees and under color of state law.

51. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which is forbidden by the Constitution of the State of New York.

52. Specifically, defendants violated plaintiffs' rights with respect to New York State Constitution, Article 1, § § 11 and 12, including the right to due process of law, *inter alia*.

53. As a direct and proximate result of the foregoing, plaintiffs, sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, conscious pain and suffering, and physical injuries to their persons.

CAUSE OF ACTION TWO

Malicious Prosecution

(By Plaintiff RAMONA DURAN SOTO Against Defendant NYPD officer MARIO GUERRO and Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10 and the CITY Defendant)

54. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

55. The CITY Defendant, and Defendant NYPD officer MARIO GUERRO and Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10, acting in concert, did, without probable cause, maliciously prosecute Plaintiff RAMONA DURAN SOTO insofar as they made false statements to prosecuting authorities that plaintiff had assaulted or attempted to assault Defendant NYPD officer MARIO GUERRO and Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10.

56. Those false statements were made with the intent to cover up their own crimes and falsely justify their brutal beating of plaintiff.

57. The criminal proceeding against plaintiff terminated favorably in that it was dismissed.

58. The defendant NYPD officers were acting in their official capacities as NYPD members and officers, under color of law.

59. Defendant **CITY**, as employer of **Defendant NYPD officer MARIO GUERRO** and **Defendant NYPD Officers JOHN and JANE DOE Nos. 1 -10**, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

60. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION THREE
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Search and Seizure
(By All Plaintiffs Against All Defendants)

61. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

62. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob Plaintiffs of their freedom of movement.

63. Plaintiffs are "person[s] aggrieved," as defined by New York City Administrative Code § 8-801.

64. As detailed in the preceding paragraphs, defendant NYPD Officers did confine plaintiffs without probable cause.

65. Plaintiffs were conscious of their unlawful confinement.

66. Plaintiffs did not consent to their unlawful confinement.

67. The defendant NYPD Officers each deprived plaintiffs of their freedom of movement knowingly, intentionally, recklessly, and negligently.

68. Defendant NYPD Officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

69. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

70. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

71. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

72. As a direct and proximate cause of the defendants’ actions in this matter, plaintiffs sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of their civil rights.

CAUSE OF ACTION FOUR
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Use of Excessive Force
(By Plaintiff RAMONA DURAN SOTO Against All Defendants)

73. Plaintiffs repeats and realleges every allegation set forth in the preceding paragraphs.

74. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

75. Plaintiff is a “person aggrieved,” as defined by New York City Administrative Code § 8-801.

76. The defendant NYPD Officers, acting in concert and under color of state law, did, without probable cause or legal justification, use excessive force against plaintiff.

77. As detailed in the preceding paragraphs, defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against her.

78. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

79. Defendant NYPD officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

80. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

81. Those defendant NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

82. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

83. As a direct and proximate cause of the defendants’ actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

CAUSE OF ACTION FIVE
Common Law False Arrest and Unlawful Imprisonment
(By All Plaintiff Against All Defendants)

84. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

85. The defendant NYPD officers did intentionally and unlawfully confine and imprison plaintiffs.

86. Defendant NYPD officers intended to confine plaintiffs and, in fact, confined plaintiffs.

87. Plaintiffs were conscious of their confinement.

88. Plaintiffs did not consent to their confinement.

89. The defendant NYPD officers did not have a valid judicial warrant for plaintiffs' arrest, nor was their confinement of plaintiffs otherwise privileged.

90. Those defendant NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

91. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries, and physical injuries.

CAUSE OF ACTION SIX
Common Law Assault
(By Plaintiff RAMONA DURAN SOTO Against NYPD Defendants)

92. Plaintiffs repeat and reallege every allegation set for in the preceding paragraphs.

93. Defendant NYPD officers, individually and in concert, did intentionally assault plaintiffs.

94. The defendant NYPD officers did, without lawful justification, threaten severe violence against plaintiffs.

95. The defendant NYPD officers did have the apparent means to carry out such violence against plaintiff, and in fact, did severe and horrific violence to **Plaintiff RAMONA DURAN SOTO**.

96. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

97. As a direct and proximate result of the foregoing, plaintiffs sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to her person.

CAUSE OF ACTION SEVEN

Common Law Battery

(By Plaintiff RAMONA DURAN SOTO Against All Defendants)

98. Plaintiffs repeat and reallege every allegation set for in the preceding paragraphs.

99. Defendant NYPD officers, individually and in concert, did intentionally batter **Plaintiff RAMONA DURAN SOTO**.

100. The defendant NYPD officers did, without lawful justification, make offensive and unwanted contact with **Plaintiff RAMONA DURAN SOTO's** person.

101. The defendant NYPD officers did twist and wrench **Plaintiff RAMONA DURAN SOTO's** extremities and slam her onto hard concrete ground causing severe physical injury.

102. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

103. As a direct and proximate result of the foregoing, plaintiff sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, conscious pain and suffering, and injuries to her person.

CAUSE OF ACTION EIGHT
Negligent Infliction of Emotional Distress
(By All Plaintiffs Against All Defendants)

104. Plaintiffs repeat and reallege every allegation set for in the preceding paragraphs.

105. Defendant NYPD officers, individually and in concert, negligently engaged in conduct against plaintiffs that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency.

106. Those defendant officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

107. The defendant NYPD officers conduct towards plaintiffs was extreme and outrageous.

108. The defendant NYPD officers conduct had a substantial probability of causing severe emotional distress to plaintiffs.

109. As a direct and proximate result of the foregoing, plaintiffs sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, and conscious pain and suffering.

CAUSE OF ACTION NINE
Intentional Infliction of Emotional Distress
(By All Plaintiffs Against All Defendants)

110. Plaintiffs repeat and reallege every allegation set for in the preceding paragraphs.

111. Defendant NYPD officers did, individually and in concert, intentionally engage in conduct against plaintiffs that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency.

112. Those NYPD officers that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

113. The defendant NYPD officers conduct towards plaintiffs was extreme and outrageous.

114. The NYPD officers conduct had a substantial probability of causing severe emotional distress to plaintiffs.

115. As a direct and proximate result of the foregoing, plaintiffs sustained, *inter alia*, fear, anguish, terror, emotional distress, severe emotional distress, mental anguish, shock, apprehension, embarrassment, humiliation, and conscious pain and suffering.

CAUSE OF ACTION TEN
Negligent Hiring and Retention
(By All Plaintiffs Against CITY Defendant)

116. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

117. Upon information and belief, the NYPD officers involved in this incident were unfit and incompetent to serve as police officers.

118. Upon information and belief, Defendant **CITY's** negligence in screening, hiring, training, disciplining, and retaining these defendant NYPD officers caused or proximately caused each of plaintiffs' injuries.

FEDERAL LAW CLAIMS

CAUSE OF ACTION ELEVEN
42 U.S. Code § 1983 – Deprivation of Fourth Amendment Right to be Free
from Unreasonable Searches and Seizure
(By All Plaintiffs Against All Defendants)

119. Plaintiff repeat and reallege every allegation set forth in the preceding paragraphs.

120. The **CITY** Defendant and each individual Defendant NYPD Officers, acting in concert, did willfully, knowingly, and with the specific intent, did deprive plaintiffs of their constitutional rights secured by 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

121. The **CITY** Defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob plaintiffs of their freedom of movement.

122. As detailed in the preceding paragraphs, defendants did physically confine plaintiffs without probable cause.

123. Plaintiffs were conscious of their unlawful confinement.

124. Plaintiffs did not consent to their unlawful confinement.

125. The defendants each deprived plaintiffs knowingly, intentionally, recklessly, and negligently.

126. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

127. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

128. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

129. As a direct and proximate cause of the defendants' actions in this matter, plaintiffs sustained, inter alia, physical, emotional, psychological, reputational, and economic damages, as well as loss of their civil rights.

CAUSE OF ACTION TWELVE
42 U.S. Code § 1983 – Malicious Prosecution
(By Plaintiff RAMONA DURAN SOTO Against All Defendants)

130. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

131. The defendants did willfully, knowingly, and with the specific intent, did deprive **Plaintiff RAMONA DURAN SOTO** of her constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments the United States Constitution.

132. The defendants, acting in concert, did, without probable maliciously prosecute plaintiff.

133. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

134. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

135. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

136. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, inter alia, physical, emotional, psychological, reputational, and economic damages, as well as loss of their civil rights.

CAUSE OF ACTION THIRTEEN
42 U.S. Code § 1983 – Deprivation of Fourteenth Amendment Right of Due
Process / Fourth Amendment Excessive Force
(By Plaintiff RAMONA DURAN SOTO Against All Defendants)

137. Plaintiffs repeat and reallege every allegation set forth in the preceding paragraphs.

138. The **CITY** defendants and each individual defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive **Plaintiff**

RAMONA DURAN SOTO of her constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

139. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

140. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against her, causing her severe injuries.

141. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

142. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

143. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of her civil rights.

WHEREFORE, Plaintiffs RAMONA DURAN SOTO, ELAINY ORTIZ SOTO, and ELINE ORTIZ SOTO, respectfully requests judgement against Defendants as follows:

- a. An award of compensatory damages against all defendants in an amount to be determined at trial.
- b. An award of special damages against all defendants in an amount to be determined at trial.

- c. An award of punitive damages against all defendants in an amount to be determined at trial.
- d. An award of reasonable attorney's fees and costs.
- e. Such other relief that this Courts deems just and proper, together with attorney's fees, interest, costs, and disbursements.

Dated: Brooklyn, New York
November 22, 2024

By: David R. Kline, Jr.
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
E: David@DRKlineLaw.com

Attorneys for Plaintiff

VERIFICATION

I, **RAMONA DURAN SOTO**, under penalties of perjury under the laws of New York, swear and affirm the following:

I am the plaintiff in the above-entitled action. I have had the foregoing complaint read to me and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.

Dated: Brooklyn, New York
November 22, 2024

Ramona Duran Soto
RAMONA DURAN SOTO

VERIFICATION

I, **ELAINY ORTIZ SOTO**, under penalties of perjury under the laws of New York, swear and affirm the following:

I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.

Dated: Brooklyn, New York
November 22, 2024



ELAINY ORTIZ SOTO

VERIFICATION

I, **ELINE ORTIZ SOTO**, under penalties of perjury under the laws of New York, swear and affirm the following:

I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.

Dated: Brooklyn, New York
November 22, 2024

Eline Ortiz Duran

ELINE ORTIZ SOTO